

Authority for Personal Data
P.O. Box 93374, 2509 AJ The Hague
Hoge Nieuwstraat 8, 2514 EL The Hague
T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl
Municipality of Voorschoten
Attn: the Board of Mayor and Aldermen
P.O. Box 393
2250 AJ VOORSCHOTEN

Date

November 2, 2023

Our reference

z2023-00037

Contact person

[CONFIDENTIAL]

Subject

Decision to impose an administrative fine

Dear Board,

The First-Line Investigation Department of the Authority for Personal Data (hereinafter: AP) has conducted an investigation following a request for enforcement regarding the processing of personal data by the Board of Mayor and Aldermen of the Municipality of Voorschoten (hereinafter: the Board) in the context of the implementation of the waste collection policy in the municipality. The findings of the investigation have been recorded in a report, which was sent to the Board on March 13, 2023.

In the present decision, the AP establishes that the Board has processed personal data regarding the so-called disposal history of residents of the Municipality of Voorschoten without sufficient legal basis and therefore unlawfully. The AP further establishes that the Board has not properly informed the residents of the Municipality of Voorschoten about the personal data processed in this context, the purpose, and the legal basis for the processing. As a result, the Board was in violation of Articles 5, first paragraph, introductory phrase and under a, read in conjunction with Article 6, first paragraph, introductory phrase and under e, and Article 14, first paragraph, introductory phrase and under c and d, of the General Data Protection Regulation (hereinafter: GDPR).

With this decision, the AP imposes an administrative fine of €30,000 on the Board. The following sections will address (1) the procedure, (2) the Board's views on the findings of the investigation, (3) the assessment, and (4) the decision to impose the administrative fine. Finally, it is mentioned what an interested party can do if they do not agree with this decision.

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1. Investigation and Findings

On March 9, 2019, the AP received a request for enforcement from a resident of the Municipality of Voorschoten. On October 18, 2020, it became clear that the resident was not only advocating for themselves but also on behalf of another resident of the municipality. The residents are referred to in this decision collectively and individually as "complainant." The complainant's request concerns the processing of personal data in waste collection in the Municipality of Voorschoten. In response, the First-Line Investigation Department of the AP conducted an investigation and recorded its findings in a report dated December 22, 2022. The following facts emerge from the report.

On March 29, 2016, the municipal council of the Municipality of Voorschoten adopted the Waste Policy Plan 2016-2020. According to the Waste Policy Plan, the municipality aims to reduce the amount of residual waste. Additionally, better separation of waste streams should lead to more materials being reused. The municipality does not employ a system of differentiated tariffs (diftar), which means that households are charged based on their actual use of waste facilities. There are also no plans to introduce a diftar system.

The Waste Policy Plan distinguishes between single-family homes or ground-based housing (hereinafter: low-rise) and apartments (hereinafter: high-rise). Residents of low-rise buildings use gray residual waste containers (kliko's) that are periodically emptied by a garbage truck. Residents of high-rise buildings use underground residual waste containers on the street. To implement the Waste Policy Plan, the Board has taken the following two measures, as far as relevant:

1)

Low-rise

In March 2019, all gray residual waste containers (kliko's) in the municipality were replaced with new containers equipped with a chip. This chip contains a unique number. The number of containers in the municipality has been reduced since each household (residential address) now has only one container. The new container is provided with a barcode sticker with the address for the issuance of the container, but this sticker has no further function and can be removed without consequences.

The garbage truck is equipped with a reader that can read the chip number. If there is recognition, the container is emptied. Subsequently, the municipality stores data in an IT system of the municipality's collection service. This includes the chip number, the corresponding address, date and time of emptying, location data of emptying, and type of waste. The container cannot be emptied again for two weeks because the garbage truck will not accept the container. The data remained stored in the IT system as long as the container was in use, and the data was deleted from the system when the container was replaced.

Residents of the low-rise buildings were informed by letter about the replacement of the containers, but the letter did not specify which personal data would be processed via the chip in the new containers, what the purpose of that processing is, and what the legal basis for it is.

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2)

High-rise buildings

At the end of 2018, the above-ground communal containers were replaced by underground containers. These containers can only be opened with a token, which, like the residual waste containers for low-rise buildings, contains a chip with a unique number. For each underground container, it can be determined which tokens have access to the container. A container can be opened five times a day with a token; after that, access to the container is denied.

After the container is opened with a token, the municipality stores data in an IT system of the municipality. This includes token number, address details, date and time of the deposit, location data, and type of waste. This data was retained in the IT system for five years.

The residents of the high-rise buildings were informed by letter about the new containers with tokens, but the letter did not mention which personal data would be processed with the token, what the purpose of that processing is, and what the legal basis for it is.

The research report concluded that the municipal executive, as the data controller, processes personal data of residents for the collection of household waste. The report then addressed the question of

whether the municipal executive can invoke the legal basis it cited, "necessity for the performance of a task carried out in the public interest" (Article 6, paragraph 1, introductory part and under e, of the GDPR).

In the context of low-rise buildings, the research report concluded that the temporary processing of personal data via the chip reader on the garbage truck is necessary for the performance of the municipal executive's task. It must be verified that it concerns a container provided by the municipality and that it has not been emptied recently. This applies only to the extent and for as long as necessary to empty the gray container and temporarily block it. However, it is not necessary to store for a longer time which container (chip number and address) was offered when (date and time) with waste. This would only be different if these so-called "deposit data" were used for a pay-as-you-throw system, but the municipality of Voorschoten does not do that.

In the context of high-rise buildings, it was similarly concluded that it is necessary for the municipal executive's task to check whether a token provides access to the waste container and whether the maximum number of deposits per day is not exceeded. However, it is also not necessary to keep track of which token (token number and address) was used when (date and time) where (location data of the container) what type of waste was offered. This would only be different if the deposit data were used for a pay-as-you-throw system, but as mentioned, the municipality of Voorschoten does not do that.

Since the necessity for the long-term processing of the deposit data is lacking, that processing cannot be based on the legal basis of necessity for a task of public interest. The processing is therefore
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to the extent unlawful (Article 5, first paragraph, introductory phrase and under a, read in conjunction with Article 6, first paragraph, introductory phrase and under e, of the GDPR).

It has also been concluded in the investigation report that the municipality has not properly informed the residents of high-rise and low-rise buildings about the personal data being processed via the chip in the container respectively the token for the underground container, the purpose, and the basis for that processing. This constitutes a violation of the municipality's information obligation (Article 5, first paragraph, introductory phrase and under a, read in conjunction with Article 14, first paragraph, introductory phrase and under c and d, of the GDPR).

2. Municipality's response to the report

The AP has sent the investigation report and the underlying documents to the municipality. In this context, the AP has expressed its intention to take a corrective measure to end the excessive retention of waste data, to destroy the data already stored, and to properly inform the residents. Additionally, the AP has expressed its intention to impose an administrative fine.

The municipality has taken the opportunity to provide a response by letter dated March 28, 2023. A meeting took place on May 24, 2023, with representatives of the municipality. In the response and during the meeting, the following was presented on behalf of the municipality regarding the investigation report. As far as the response pertains to the measures to be imposed, this will be addressed in paragraph 4 of this decision.

2.1. Regarding the data controller, processing, and facts

The municipality has first acknowledged that it is the data controller for the processing of personal data that takes place within the framework of the Waste Policy Plan, as described in the investigation report. The municipality further endorses the facts as laid out in the report.

2.2. Regarding the necessity concerning grey containers

The municipality has explained that the primary goal of the Waste Policy Plan is to initiate a transition in which waste is increasingly converted into raw materials. By increasing the percentage of separated waste, it is aimed that by 2030 only raw materials will be collected and thus no residual waste. To achieve this, waste separation must be encouraged.

Stricter management concerning above-ground containers (wheeled bins) and underground containers is one of the means to this end. By linking the grey containers to an address, it can be prevented that residents incorrectly report their grey container as missing and, after receiving a new container, can subsequently present two containers. If a container with a chip is reported as missing and is not found within two weeks, the old chip number can be blocked due to the link to the address. The old container can then no longer be emptied and will be replaced by a container with a different chip number. On behalf of the municipality, it has been stated that there are in

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In the past year, 300 containers had to be replaced. In February 2023, 30 containers were reported as missing, and 29 were returned to the municipality because the missing containers were not emptied and were left behind. This indicates that the use of the chip is effective.

Additionally, a container can now only be emptied once every two weeks due to the chip. After emptying, the chip is blocked for two weeks. In the conversation on May 24, 2023, the board explained that the garbage truck operates daily and that the collection day varies by neighborhood. Without the chip and blocking of the container, residents, particularly those in the border areas of a neighborhood, could offer their residual waste more frequently than once every two weeks.

These two points (limiting the number of containers and the collection frequency) lead to a maximum amount of residual waste being collected from residents. This aims to provide a positive incentive to separate more waste so that it does not need to be offered as residual waste. According to the board, it is necessary to retain the disposal data for this purpose.

Furthermore, the board points out that a resident can file a complaint with the board if the gray container is not functioning properly, has not been emptied, or has gone missing. It may be relevant to investigate when waste was last offered. Approximately 2,000 containers are emptied daily, resulting in several dozen reports per week.

On May 24, 2023, the board promised the AP to set the retention period for the disposal data for the gray containers at fourteen days, instead of retaining it for as long as the container is in use.

2.3. Regarding the necessity of underground containers

By regulating access to the underground containers with a token, the amount of residual waste for residents of high-rise buildings is first limited. Additionally, it prevents residents who have a gray container from also disposing of waste in the underground containers. This would negate the effect of the stricter management of gray containers. Furthermore, regulating access prevents residents from other municipalities from improperly using the underground containers. The board also points out the management of the tokens. There is a strict policy that only one token is issued per household. The token can open a residual waste container a maximum of five times per day. For this, it is necessary to retain the disposal data for at least 24 hours.

Regarding the tokens, a resident can also file a complaint. It does occasionally happen that an underground container or token does not function properly. To handle these complaints, it is necessary to consult the disposal history. This can indicate whether the token has been recently offered and thus has become defective (in which case the token will be replaced free of charge) or has not been offered for a longer period (which indicates that the token is lost, in which case the resident must pay for a

replacement).

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On May 24, 2023, the college promised the AP to set the retention period for the data of underground waste containers at fourteen days, instead of five years.

2.4. Regarding the provision of information

The college endorses the finding in the research report that the information provision to the residents does not meet the requirements of the GDPR. Nevertheless, it should be noted by the college that it has attempted to inform the residents appropriately. In letters dated March 5 and 22, 2019, the college tried to clarify the purpose of replacing the containers. It was mentioned that the containers are equipped with chips to manage the containers, thereby aligning with the objective of increased waste separation as described in the Waste Policy Plan. It was then explained that the chips are linked to the residential address, followed by a detailed explanation of how the chip is used to achieve better management of waste collection. It is clarified that the collection vehicle scans the chip and subsequently records that the container has been emptied. According to the college, it is at least partially explained for what purpose the personal data is processed.

On the other hand, the college acknowledges that the information provision regarding the containers for high-rise buildings has fallen short. The letter dated November 30, 2018, was also deemed by the college to be insufficiently clear to provide residents with a good understanding of the processing of personal data in the context of waste policy.

3. Assessment

3.1. Data controller and processing of personal data

As established in paragraphs 3.1, 3.2, and 3.3 of the research report, and endorsed by the college, the college, as the data controller for the collection of residual waste, processes personal data of residents of the municipality of Voorschoten. This concerns the chip number of the container or token, the associated address details, date and time of emptying the container or opening the underground container, location data, and type of waste. These data are linked to an address via the chip number and make the respective residents directly or indirectly identifiable.

3.2. Violation 1: processing of personal data without a legal basis

According to the GDPR, personal data must be processed in a manner that is lawful concerning the data subject (Article 5, first paragraph, introductory phrase and under a). The processing is only lawful if and to the extent that at least one of the conditions ("legal bases") mentioned in Article 6, first paragraph, is met.

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The college has taken the position that the processing in question is based on the ground that the processing is necessary for the performance of a task carried out in the public interest (Article 6, first paragraph, introductory phrase and under e, of the GDPR). Therefore, the existence of a public task and the necessity to process personal data for that purpose will be addressed in succession.

3.2.1.

Public Task

As stated in the research report, it follows from Article 10.21 and further of the Environmental Management Act that the municipal council and the college have the public task to ensure the collection of household waste at least once a week. The municipal council has the authority to establish a waste regulation for this purpose, which the council of the municipality of Voorschoten has done. In doing so, the municipal council has the space to establish an environmental policy plan based on Article 10.23, second paragraph, read in conjunction with paragraph 4.6 of the Environmental Management Act. The municipal council has tasked the college with the collection of household waste in the waste regulation. This implies that the college has a task of public interest concerning the collection of household waste.

As the Administrative Jurisdiction Division of the Council of State (hereinafter: the Division) has ruled in its judgment of June 30, 2021 (ECLI:NL:RVS:2021:1420), the municipal administration has a certain degree of discretion in fulfilling that task. The college implements the policy laid down in the Waste Policy Plan 2016-2020. Part of this is that the college focuses on limiting facilities for residual waste to encourage waste separation.

3.2.2.

Necessity to Process Personal Data

The necessity requirement entails that the processing of personal data must be proportional and subsidiary. The Division has considered in its judgment of June 30, 2021 (as mentioned) that, in assessing necessity, it must first be determined whether the purpose for which the personal data is processed is well-defined and explicitly described. Furthermore, it must be determined whether that purpose can be achieved through the processing. The purpose must fit within the task of public interest. Subsequently, it must be examined whether the infringement on privacy is proportional to the interests served by the processing. In particular, it must be assessed whether the purpose cannot be realized in another, less detrimental manner for the individuals concerned. The more detailed a potential party describes an alternative, the more thorough the investigation by the AP must be. The Division has further considered that the risk of misuse of the system pertains to the security of the processing and is not relevant for determining its legality.

Paragraph 3.2.1 of this decision has addressed the task of public interest and the discretion of the college to implement policy in this regard. Given the provisions of the Environmental Management Act and the established Waste Policy Plan, the AP is of the opinion that the purpose for which the personal data is processed – reducing the amount of residual waste by regulating the volume of that waste stream – in this case

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well-defined and explicitly described. The AP also establishes that the objective can be achieved by processing personal data. The address-linked numbers in the chip in the gray containers and tokens play a key role in limiting the amount of residual waste that a household can present. Furthermore, the purpose of the processing fits within the public task described in paragraph 3.2.1.

Next, it must be considered whether the infringement of privacy is proportional to the interests served, specifically by examining whether the objective can be achieved in a less detrimental manner. In the enforcement request, the complainant suggested the possibility of anonymous chips. However, the link to an address is necessary to manage the chips (issue and block) and thus achieve the objective. Without this link, it cannot be prevented that a household has multiple containers and/or tokens, or that these end up with a company or resident of another municipality. This would undermine the use and intention of the chips. The fact that the green organic waste container and blue paper container are not equipped with a chip is not an indication of the absence of the necessity to process personal data to achieve the objective regarding residual waste. Those containers – and the so-called environmental

parks in the municipality – are specifically intended for separated waste streams and not for residual waste.

As stated in the investigation report, the AP is of the opinion that the processing of personal data is proportional to the objective to be served. The use of a chip and the storage of data to verify whether a container has been emptied in the past two weeks is necessary for that purpose. It is also necessary for that purpose to record data for the management of the containers, such as which address a container (chip number) belongs to and whether it is missing. A longer processing of the disposal data than the stated period of two weeks does not further contribute to the aforementioned objective and is therefore not proportional.

The same applies to the token for underground waste containers. The use of a chip and the storage of data is necessary to verify that the daily maximum number of disposals is not exceeded. It is also necessary for the management of the token to be able to look back for some time, so that the functioning of a token can be checked if a resident reports a malfunction. It can be assumed that each household presents residual waste at least once every two weeks, so there is no need to look back further than that to see if the token has recently worked. Again, a longer processing than these fourteen days does not further contribute to the stated objective and is therefore not proportional.

3.2.3.

Conclusion

The college retained the disposal data of gray containers as long as the container was in use, and the disposal data of the tokens for five years. This far exceeds the two-week period. For the period during which the period has been exceeded, there is no necessity to process personal data in the context of the public interest task. The conclusion is therefore that this processing does not meet the requirements of Article 6, paragraph 1, introductory phrase and under e, of the GDPR and is thus unlawful.

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The college has stated that the retention period has been adjusted and the stored deposit data was deleted in July 2023, insofar as it was older than two weeks. A supervisor from the AP had access to the systems on October 2, 2023, and found that there were no deposit data present that exceeded the retention period of fourteen days. In light of the above, it is established that the college was in violation of Article 5, first paragraph, introductory phrase and under a, read in conjunction with Article 6, first paragraph, introductory phrase and under e, of the GDPR during the period from late 2018 (high-rise) respectively March 2019 (low-rise) to July 2023.

3.3. Violation 2: Failure to properly inform data subjects about the processing of personal data

Pursuant to the GDPR, personal data must be processed in a manner that is, among other things, transparent to the data subject (Article 5, first paragraph, introductory phrase and under a). The information that the data controller must provide to the data subjects about personal data not obtained from the data subjects is specified in Article 14 of the GDPR. This includes, among other things, the purpose of processing and the legal basis for the processing (first paragraph, introductory phrase and under c) and the relevant categories of personal data (first paragraph, introductory phrase and under d).

As mentioned in the investigation report, the college has informed the residents of the municipality in writing about the replacement of the gray containers and the above-ground containers. To this end, the college sent letters on November 30, 2018 (high-rise), March 5, 2019, and March 22, 2019 (low-rise). However, these letters mainly concern the factual proceedings regarding the replacement of the gray containers and underground containers, and do not or insufficiently mention the processing of personal

data of the data subjects. As noted in the investigation report, the letters do not specify which categories of personal data are processed via the chip in the container respectively the token for the underground container, the purpose, and the legal basis for that processing. The college has endorsed this finding in its response.

The college informed the residents again by letter dated September 1, 2023 (according to the college sent on September 22, 2023) about the processing of personal data in the context of the collection of residual waste. This letter does contain all the required information. This means that the violation has ended.

In light of the above, it is established that the college violated the information obligation during the period from late 2018 (high-rise) respectively March 2019 (low-rise) to September 22, 2023. Thus, the college was in violation of Article 5, first paragraph, introductory phrase and under a, read in conjunction with Article 14, first paragraph, introductory phrase and under c and d, of the GDPR.

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4. Administrative fine

4.1. Response of the college

As stated in paragraph 2 of this decision, the college has also addressed the imposition of a remedial measure and/or administrative fine in its response. The college argues that the imposition of a remedial measure is not necessary. The processing described in the investigation report is being ceased by the college insofar as it is not necessary for the implementation of waste policy. As mentioned earlier, the retention period has now been set at fourteen days and older data has been deleted. Furthermore, the college has informed the residents of the municipality again in the manner that should have been done according to the investigation report.

The college further argues that it cannot agree with the imposition of an administrative fine. Firstly, it concerns personal data with a relatively low risk level. After all, it involves address data of residents, which can only be traced back to a specific person through enrichment with data from the Basic Registration of Persons (hereinafter: BRP). Moreover, both the chip in the container and the token contain only a number. The chip can only be read with the IT system of the waste service and linked to an address. Only two employees of the municipality have access to this information and only when necessary for the implementation of waste policy.

Additionally, the college points out that the short-term processing of personal data when emptying the gray container respectively opening the underground container is, according to the report, necessary for the implementation of waste policy, and that the problem lies only in the longer than necessary retention of the deposit data.

Finally, the college points out that the AP did not impose a fine on the municipality of Arnhem (decision of August 1, 2017), while that case is broadly comparable to that of the municipality of Voorschoten. There, too, it concerned the excessive retention of personal data in the context of the implementation of waste policy. In that case, the AP imposed a penalty under a coercive order to end the violation.

4.2. Remedial sanction

The college has already ended the identified violations by deleting the unlawfully processed data, adjusting the processing, and informing the residents of the municipality about the processing. Therefore, there is no fear of a recurrence of the violation. A remedial sanction is therefore not applicable.

4.3. Administrative fine

The AP does see reason to exercise its authority to impose an administrative fine. Of what has been stated in the college's response, one ground concerns the question of whether a fine should be imposed (namely the ground that the AP has previously been satisfied with...

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a penalty under a coercive fine). This will now be addressed; the other grounds raised will be discussed in light of the amount of the fine to be imposed.

The college points out, as mentioned in paragraph 4.1, a decision of the AP dated August 1, 2017, which was directed to the college of mayor and aldermen of the municipality of Arnhem. That case shows similarities with the current case in that it also concerned the processing of personal data in the context of waste processing using chips (there, in access passes for underground waste containers). The purpose of the processing was also to limit the volume of residual waste. However, a further comparison of the cases is hindered by the applicable legal regime.

At the time of the Arnhem case, the GDPR was not in force, but its predecessor, the Personal Data Protection Act (hereinafter: Wbp). Under the Wbp, a different penalty regime applied than that which currently applies under the GDPR.¹ Under the old regime, no fine could be imposed for the provisions violated by the Arnhem college without a prior binding instruction being given. This principle only had exceptions if the violation was committed intentionally or was the result of grossly negligent omission. The Arnhem college had not previously been given a binding instruction, nor was there any intent or gross negligence. For that reason alone, no fine could be imposed in that case.

With the application of the GDPR on May 25, 2018, the violations identified in this decision can now be fined directly. The mere circumstance that no administrative fine could be imposed in the past due to the then-applicable penalty regime does not give the AP any reason to refrain from doing so now.

4.4. Penalty Policy Rules Authority Personal Data 2019

In exercising the authority to impose an administrative fine, the AP applies the Penalty Policy Rules Authority Personal Data 2019 (hereinafter: Penalty Policy Rules 2019) with respect to governments. The violations for which the AP can impose a fine are categorized in the Penalty Policy Rules 2019 into three penalty categories. These categories are ranked according to the severity of the violation of the mentioned articles, with category I containing the least severe violations and category III containing the most severe violations. Increasing monetary fines are attached to the categories. This follows from Article 2, under 2.1 and 2.3 of the Penalty Policy Rules 2019.

Category I

Fine range between €0 and €200,000

Base fine: €100,000

Category II

Fine range between €120,000 and €500,000

Base fine: €310,000

Category III

Fine range between €300,000 and €750,000

Base fine: €525,000

¹ The penalty regime was laid down in Chapter 10, Section 2 (Article 66 and further) of the Wbp.

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According to Article 6 of the Penalty Policy Rules 2019, the AP determines the amount of the fine by adjusting the base fine upwards or downwards, depending on the extent to which the factors mentioned in Article 7 warrant this. Based on Article 8, it is possible to apply the next higher or lower category if the penalty category determined for the violation does not allow for appropriate punishment in the specific case.

In the case of multiple violations concerning the same or related processing activities, the total fine shall not exceed the statutory maximum fine for the most severe violation.

4.5. Penalty Category and Base Fine

The violation of Article 5, first paragraph, introductory phrase and under a, read in conjunction with Article 6, first paragraph, introductory phrase and under e, of the GDPR (processing of personal data without a legal basis), as indicated in Annex I to the Penalty Policy Rules 2019, is classified in category III. The same applies to the violation of Article 5, first paragraph, introductory phrase and under a, read in conjunction with Article 14, first paragraph, introductory phrase and under c and d, of the GDPR (failure to comply with the information obligation). The fine range and base fine of this category (range between €300,000 and €750,000 with a base fine of €525,000) cannot, given the following discussion of aggravating and mitigating factors, lead to an appropriate punishment for the identified violations in this case. Therefore, penalty category II will be applied, with a fine range from €120,000 to €500,000 and a base fine of €310,000.

The factors mentioned in Article 7 of the Penalty Policy Rules 2019 give rise to comments on the following points. The factors not discussed are not applicable in this case.

a.

Nature, severity, and duration of the infringement

Regarding the severity of the infringement, the AP notes that the unlawful processing of personal data was not isolated but was a continuation of a processing that was lawful. However, the college did not recognize that the legal basis for the processing fell away after some time because the necessity of the processing is time-limited.

In a similar vein, regarding the violation of the information obligation, the college did inform the residents of the municipality about the introduction of the chip in the container and the token, but it did not timely recognize that the information provided was insufficient regarding the processing of personal data.

In light of these points, the base amount should be adjusted downwards.

f.

The extent to which the supervisory authority has cooperated to remedy the infringement and mitigate its possible negative consequences.

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After receiving the investigation report, the board acknowledged all findings therein. Shortly thereafter, the board consulted with the software supplier and had the necessary adjustments made to ensure that the processing was sustainably in compliance with the GDPR. The board has once again informed the residents—this time correctly—about the processing of personal data. Additionally, the negative consequences of the processing have been eliminated by removing all historical data from the municipality's systems.

For this reason as well, the base amount should be adjusted downward.

g.

Categories of personal data to which the breach relates

The AP further considers that the personal data processed, by their nature, could only lead to a limited breach of privacy. The processed data was only traceable to address level. Furthermore, only two employees of the municipality could view the data and trace it back to the individuals of the respective household using the BRP. Moreover, the data only provides insight into the date on which residual waste was offered. The amount of waste was not recorded, and the location at the time of collection, in the case of the gray containers, is associated with the designated offering location and is the same for all residents of the same area. In the case of the underground containers, the location is logically the location of the container.

For this reason as well, the base amount should be adjusted downward.

Conclusion

In light of the above, the AP sees reason to reduce the base fine to the minimum of the fine band width, which is €120,000.

4.6. Proportionality of the fine amount

Finally, the AP will assess, based on Article 49, third paragraph, of the Charter of Fundamental Rights of the European Union and Articles 3:4 and 5:46 of the General Administrative Law Act (principle of proportionality), whether the application of its policy for determining the amount of the fine, given the circumstances of the specific case, does not lead to an disproportionate outcome.

The AP qualifies the severity of the violations as minor, particularly due to the nature of the data (discussed above under circumstance g) and the fact that the violation regarding the legal basis was preceded by lawful processing (discussed above under circumstance a) and became unlawful due to the passage of time. Given the minor severity of the violations and the circumstances under which the violations were committed, the AP sees reason to set the fine lower than €120,000. The AP considers a fine of €30,000 appropriate and warranted.

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5.

Ruling

Administrative fine

The AP imposes an administrative fine of €30,000.00 (thirty thousand euros) on the board of the mayor and aldermen of the municipality of Voorschoten for the violation of Article 5, first paragraph, introductory text and under a, read in conjunction with Article 6, first paragraph, introductory text and under e, and Article 14, first paragraph, introductory text and under c and d, of the GDPR.

Yours sincerely,

Data Protection Authority

mr. A. Wolfsen

Chairman

Remedies clause

If you disagree with this decision, you may submit a notice of objection digitally or in writing to the Data Protection Authority within six weeks of the date of dispatch of the decision. Pursuant to Article 38 of the GDPR, the submission of a notice of objection suspends the effect of the order imposing the administrative fine. For submitting a digital objection, see www.autoriteitpersoonsgegevens.nl, under the heading Contact, item "Tip, complaint or objection."

The address for submitting in writing is:

Data Protection Authority
P.O. Box 93374
2509 AJ The Hague.

Please indicate on the envelope 'Awb-objection' and title your letter 'notice of objection'.

In your notice of objection, please include at least:

- your name and address;
- the date of your notice of objection;
- the reference mentioned in this letter (case number), or attach a copy of this decision;
- the reason(s) why you disagree with this decision;
- your signature.

2 The AP will refer the claim to the Central Judicial Collection Agency (CJIB).

3 The direct URL is .